

22STCV36925 22STCV36925

County: los-angeles

Division: Civil Law and Motion

Department: 316

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Case Number: 22STCV36925 Hearing Date: July 13, 2026 Dept: 316

BACKGROUND

On November 22, 2022,

Plaintiff Ricardo Sanchez filed a complaint against Defendants Cain Sanchez, Jr., Yong Yu Sanchez, Dependable Pallet Logistic, Inc., Yan Holding LLC, All Persons Claiming Right in the Subject Property, and DOES 1-100. The complaint alleges eleven (11) causes of action stemming from Defendants' alleged refusal to return the subject property back to Plaintiff after he paid off an outstanding loan.

On February 7, 2023, Cain

Sanchez, David Sanchez, and Yans Holding LLC (collectively "Cross-Complainants") filed a cross-complaint against Cross-Defendant Ricardo Sanchez.

On February 22, 2023,

Cross-Complainants filed a first amended cross-complaint ("FACC") against Cross-Defendant.

On October 6, 2023,

Cross-Complainants filed a second amended cross-complaint ("SACC") against Cross-Defendant. The SACC alleges eight causes of action: (1) Breach of Contract; (2) Breach of Contract; (3) Breach of Contract; (4) Specific Performance; (5) Fraud; (6) Constructive Trust; (7) Breach of Fiduciary Duty; and (8) Accounting.

On April 24, 2024, the

Court issued a Minute Order sustaining in part the demurrer to the SACC.

On October 16, 2025,
Cross-Defendant filed a Motion for Summary Adjudication ("MSA").

On May 21, 2026, the Court
issued a Minute Order denying Cross-Defendant's MSA.

On May 28, 2025,
Cross-Defendant filed a Motion for Leave to File Renewed MSA ("Motion").

On June 25, 2026, Cross-Complainants
filed an opposition.

On July 6, 2026,
Cross-Defendant filed a reply.

TENTATIVE RULING

Cross-Defendant's Motion
for Leave to File Renewed MSA is GRANTED.

LEGAL STANDARD

"A party shall not move
for summary judgment based on issues asserted in a prior motion for summary
adjudication and denied by the court unless that party establishes, to the
satisfaction of the court, newly discovered facts or circumstances or a change of
law supporting the issues reasserted in the summary judgment motion." (Code
Civ. Proc., § 437c, subd. (f)(2).)

Notably, the restriction
on bringing only one motion for summary judgment "does not apply to motions for
summary adjudication." (See Code Civ. Proc., § 437c, subd. (a)(4).

DISCUSSION

The Court will allow Cross-Defendant
to file a renewed MSA.

Here, the Court denied Cross-Defendant's

original MSA on procedural grounds. More specifically, the Court determined that Cross-Defendant's Separate Statement of Undisputed Facts in Support of the MSA failed to comply with California Rules of Court, rule 3.1350. (See May 21 Minute Order, p. 4 ["[T]he limited 'facts' asserted in the separate statement do not justify Summary Adjudication."].)

Because the Court did not address the merits of the MSA, the Court will allow Cross-Defendant to file a renewed MSA.

CONCLUSION

For the foregoing reasons, Cross-Defendant's Motion for Leave to File Renewed MSA is GRANTED.